

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Giordano	Team: Team # 3	CCRB Case #: 200713175	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 09/02/2007 3:40 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/2/2009	Precinct: 48
Date/Time CV Reported Tue, 09/11/2007 1:54 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/11/2007 1:54 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Fermin	02792	922334	046 PCT
2. Officers			046 PCT
3. POM Brendan Quinn	31782	930990	046 PCT
4. POM Cesar Gomez	26485	941024	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Mateer	02810	937043	048 PCT
2. POM Daniel Ryan	13155	926049	048 PCT
3. POM Frankly Galindo	29367	934893	046 PCT
4. POM John Obrien	07364	899667	046 PCT
5. POM Lawrence Dunlay	05380	938411	046 PCT
6. POM Orlando Colon	26399	940992	046 PCT
7. SGT Juan Ortiz	05606	925863	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Richard Fermin	Force: PO Richard Fermin used physical force against § 87(2)(b)	
B . POM Richard Fermin	Force: PO Richard Fermin used physical force against § 87(2)(b)	
C . POM Brendan Quinn	Force: PO Brendan Quinn used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
D . Officers	Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)	
E . POM Brendan Quinn	Abuse: PO Brendan Quinn threatened § 87(2)(b) with the use of force.	
F . POM Cesar Gomez	Force: PO Cesar Gomez used pepper spray against § 87(2)(b)	
G . Officers	Force: Officers used physical force against § 87(2)(b) at the 46th Precinct.	

Synopsis

On September 11, 2007, § 87(2)(b) filed this complaint with the CCRB via telephone. On September 2, 2007, at approximately 3:40 AM, § 87(2)(b) along with her sons § 87(2)(b) and § 87(2)(b) were at § 87(2)(b) to see § 87(2)(b)'s other son who had been shot. As § 87(2)(b) entered the hospital, a male officer identified through investigation as PO Richard Fermin, accused § 87(2)(b) of pushing him. PO Fermin then allegedly pushed § 87(2)(b) in his chest (**Allegation A**) and then forcibly pushed § 87(2)(b) aside (**Allegation B**). Another officer, identified through investigation as PO Brendan Quinn, allegedly punched § 87(2)(b) in his face (**Allegation C**). At this point, numerous officers allegedly started punching and kicking § 87(2)(b) and their friend, § 87(2)(b) (**Allegation D**). § 87(2)(b) alleged that PO Quinn threatened to hit him with his gun when he was on the floor (**Allegation E**). § 87(2)(b) alleged that while he was being assaulted he was pepper-sprayed in his face, by an officer later identified through investigation as PO Cesar Gomez (**Allegation F**). After the incident calmed down, § 87(2)(b) and § 87(2)(b) were arrested and taken back to the 46th Precinct while § 87(2)(b) stayed at the hospital because of a heart condition. Once § 87(2)(b) arrived at the 46th Precinct, several officers allegedly punched and kicked him throughout his body (**Allegation G**).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b)-old, 5'4" tall, 154 pound, Hispanic § 87(2)(b) female, provided an initial statement to the CCRB on September 11, 2007 (Enc. 6-9). She was interviewed at the CCRB on September 26, 2007 (Enc. 19-24). § 87(2)(g)

On September 2, 2007, § 87(2)(b)'s stepson, § 87(2)(b) was shot in the early morning, around 2:00 AM. § 87(2)(b)'s son, § 87(2)(b) called her and informed her of the shooting. § 87(2)(b) along with her sons § 87(2)(b) and § 87(2)(b) drove to § 87(2)(b) where § 87(2)(b) was taken. They entered the hospital and were met by § 87(2)(b) who was already there. Only a few moments later, § 87(2)(b) turned around towards § 87(2)(b) and an officer was now with him. PO 1, who was described as a Hispanic male, approximately 5'7", with a heavy build, and in uniform, said to § 87(2)(b) "You hit me." § 87(2)(b) said to PO Fermin, "Excuse me? My son was right here behind me." PO Fermin, however, did not listen to her and immediately called for backup. § 87(2)(b) was pushed with two hands by PO Fermin against the wall and was then thrown to the floor. About 20 officers entered the hospital a few seconds later and jumped on top of § 87(2)(b). § 87(2)(b) told the officers that they were only there to see her other son § 87(2)(b). The officers did not listen to her. The officers punched and kicked § 87(2)(b) all over his body. PO Fermin grabbed § 87(2)(b) and pushed her out of the way. § 87(2)(b) then defended § 87(2)(b) and said, "Hey, that's my mother." The officers then grabbed § 87(2)(b) and started hitting him as well. § 87(2)(b) was thrown to the floor, and was punched and kicked all over his body as well. § 87(2)(b) a friend of § 87(2)(b) was also thrown to the floor and hit all over his body. The officers grabbed his head and pounded it on the floor repeatedly. PO Fermin then pepper sprayed § 87(2)(b) and § 87(2)(b) while they were on the floor. § 87(2)(b) eventually fell unconscious. While § 87(2)(b) was on the floor, two officers told him to get up or they would hit him with their guns. PO 2 was described as a Hispanic male, approximately 5'5", stocky, with short black hair, and with a mustache. PO 3 was described as similar looking to PO 2 only heavier. PO 2 and PO 3 escorted § 87(2)(b) out of the hospital. She thought they had killed § 87(2)(b). She was told no information concerning their arrests. § 87(2)(b) tried to go back into the hospital but PO 2 said, "What did I tell you? I don't want

anyone in here.” § 87(2)(b) was thrown out a second time. § 87(2)(b) heard people in the hospital say that there was so much blood from § 87(2)(b) assault. § 87(2)(b) was kept overnight at the hospital because of a previous heart condition he has. § 87(2)(b) informed the officers of this condition and two officers took him to a hospital room. § 87(2)(b) did not hear from him for three days but heard from § 87(2)(b) later on by phone. § 87(2)(b) told § 87(2)(b) that while at the 46th Precinct, officers again assaulted him while inside the holding cell. About 15 employees were present in the front lobby area as witnesses. Approximately 15 friends of her sons were witnesses to the incident as well. These witnesses were inside the hospital a few feet away. None of them interfered with the arrests. Neither of § 87(2)(b)'s sons resisted arrest. § 87(2)(b) did not resist arrest and did not interfere in the arrests of § 87(2)(b) or § 87(2)(b). § 87(2)(b) indicated that no one ever hit PO Fermin. § 87(2)(b) identified PO Fermin by name from the arrest paperwork.

Results of Investigation

§ 87(2)(b) a § 87(2)(b)-old, 5' 8" tall, Hispanic male, was interviewed at the CCRB on September 26, 2007 (Enc. 10). § 87(2)(b) is the son of § 87(2)(b) and brother of § 87(2)(b).

§ 87(2)(b) stated to § 87(2)(b) on § 87(2)(b), that he has been having pain in his back and rib cage since three days ago when he was assaulted by police officers (Enc. 14).

Early in the morning on September 2, 2007, § 87(2)(b)'s household received a phone call that his stepbrother, § 87(2)(b) was shot and taken to § 87(2)(b) in the Bronx. § 87(2)(b) was awakened by his mother, § 87(2)(b) who was hysterical. He got dressed and went down to the hospital at 3:30 AM with § 87(2)(b) and his two brothers, § 87(2)(b) and § 87(2)(b). § 87(2)(b) friend, § 87(2)(b) was also at the hospital with them. As they approached the entrance to the hospital, about 25 friends of § 87(2)(b) were waiting outside the hospital since only family members were allowed to see § 87(2)(b). They entered the front doors to the hospital and were approached by PO 1, who was described as a Hispanic male, short, stocky, with short hair, and a slight beard. PO 1 was later identified through investigation as PO Fermin. PO Fermin said, “This is him,” referring to § 87(2)(b). PO Fermin called for backup and approximately 25 officers came from outside the hospital. All officers were in uniform. § 87(2)(b) indicated that the officers followed a few seconds after they had entered through the doors. PO Fermin pushed § 87(2)(b) with two hands, back first against the wall but he did not fall. § 87(2)(b) was thrown forcefully aside by PO Fermin while PO 2 punched § 87(2)(b) in his right cheek with a closed fist. PO 2 was described as a white male, taller than PO Fermin, slim, and with blonde hair. § 87(2)(b) then hit the wall again and he dropped face first onto the floor. Several officers punched and kicked § 87(2)(b) in his back, neck, and face while he was on the ground. § 87(2)(b) was then pepper-sprayed by an unknown officer. § 87(2)(b) heard § 87(2)(b) keep saying, “That’s my son. That’s my son.” While he was on the floor, § 87(2)(b) saw § 87(2)(b) on the floor as well. § 87(2)(b) then noticed that § 87(2)(b) was surrounded by several officers with a lot of movement going on. § 87(2)(b) moved all the way to the front desk area of the lobby. § 87(2)(b) was picked up under his arms and taken outside, where he was thrown into a marked police van. § 87(2)(b) was transported to the 46th Precinct stationhouse, and later processed at Central Booking, where he was charged with § 87(2)(b). His next court date is § 87(2)(b). § 87(2)(b) indicated that he did not physically resist arrest. § 87(2)(b) and § 87(2)(b) also did not resist arrest. § 87(2)(b) did not use profanity but he heard § 87(2)(b) say, “Fuck,” but did not know towards whom. He did not see anyone strike an officer. § 87(2)(b) indicated that several hospital employees were witnesses to the incident, including a female who was working at the front desk. His friends that were outside were able to see through the front door as the incident transpired, also making them witnesses. § 87(2)(b) received medical treatment § 87(2)(b) at § 87(2)(b) after his release.

§ 87(2)(b) an 18 year-old, 5'10" tall, 163 pound, Hispanic male § 87(2)(b), was interviewed at the CCRB on September 26, 2007 (Enc. 15-18). § 87(2)(b) is the son of § 87(2)(b) and the brother of § 87(2)(b).

At approximately 2:00 AM, on September 2, 2007, § 87(2)(b) cousin, § 87(2)(b) was shot. § 87(2)(b) went to § 87(2)(b) to see how he was doing. § 87(2)(b) arrived at the hospital with his friend, § 87(2)(b) approximately 10-20 minutes before his brother, § 87(2)(b) and his mother,

§ 87(2)(b) entered. § 87(2)(b) and § 87(2)(b) were waiting inside the lobby when his brother and mother arrived. When § 87(2)(b) entered, he brushed up against PO 1 who was exiting the hospital. PO 1 was described as a light skinned male, short, with a heavy muscular build, with a caesar haircut, and in uniform. He was later identified through investigation as PO Fermin. PO Fermin then called for backup which was a few feet outside the hospital. § 87(2)(b) indicated that more than ten uniformed officers were present. PO Fermin tried to first go after § 87(2)(b) and pushed § 87(2)(b) out of his way with two hands into her chest. The officers tried to grab § 87(2)(b) by his neck and also attempted to choke him with the chain he was wearing. The officers punched § 87(2)(b) in his face, back, and chest. § 87(2)(b) was thrown to the ground and kned him in the head. § 87(2)(b) was handcuffed further up his arms and not by the wrists. § 87(2)(b) noticed that there were a few female officers present but was not sure of how many. § 87(2)(b) admitted that initially he resisted arrest by pushing the officers' hands off of him as they attempted to handcuff him since he did not know what was happening. § 87(2)(b) did not use any profanity towards the officers. § 87(2)(b) noticed that his brother, § 87(2)(b) was thrown to the floor and was later thrown on top of him. At that point, § 87(2)(b) was punched and kicked by other officers. § 87(2)(b) did not see any officers assault § 87(2)(b) and did not learn of his arrest until he told him a few days later. § 87(2)(b) was handcuffed and dragged outside the hospital to a police car. PO 2, described as a tall, light skinned male, slim, and in uniform, threatened to hit § 87(2)(b) with his gun. § 87(2)(b) was having heart problems and asked for medical attention. At first they did not believe him, but § 87(2)(b) told the officer that he has a heart condition. § 87(2)(b) was dragged back into the hospital and handcuffed to a bed where he was kept overnight. After his release from the hospital, § 87(2)(b) was taken to the 46th Precinct. § 87(2)(b) was not processed and sent to Central Booking until two or three days later. Approximately ten minutes after § 87(2)(b) arrived at the precinct, he was placed in a holding cell and was assaulted by more than six male officers in uniform. Before assaulting § 87(2)(b) the officers accused him of pushing and injuring another officer. § 87(2)(b) denied ever pushing an officer inside the hospital. All officers were either white or Hispanic. The officers punched and kicked him in his face, back, legs, and chest repeatedly. § 87(2)(b) received injuries on his arms and back. After he was released, § 87(2)(b) went to a hospital to seek treatment but left because it was too crowded and has continued to take Tylenol. At Central Booking on the third floor, § 87(2)(b) asked the guards if he could have medical treatment because his chest was hurting again. He was denied by the guards. There were two black females and one white male, who was giving orders. PO 3 and PO 4 were both short, with dark skin. PO 3 was heavy whereas PO 4 was slim. PO 5 looked like the "Grim Reaper" or something like a cartoon character. PO 5 was white, tall, slim, with short hair, and older looking. § 87(2)(b) indicated that these officers were not NYPD and were corrections officers. § 87(2)(g)

§ 87(2)(b) Approximately 20 hospital employees witnessed the incident. There were approximately 15 friends outside the hospital doors who saw the incident unfold. The door kept opening and closing as the officers assaulted § 87(2)(b) and when the friends got close to the door. These friends arrived at the same time as § 87(2)(b) and § 87(2)(b). None of them interfered with the arrests. § 87(2)(b) was not pepper-sprayed and did not see § 87(2)(b) get pepper-sprayed.

§ 87(2)(b)

§ 87(2)(b) an 18 year-old, 5'6" tall, 125 pound, Hispanic male, provided a phone statement to the CCRB on October 17, 2007 (Enc. 25). § 87(2)(b) is a friend of § 87(2)(b) § 87(2)(b) declined to provide an in-person statement due to the criminal trial.

§ 87(2)(b) and § 87(2)(b) arrived at § 87(2)(b) on September 2, 2007, separately from § 87(2)(b) and his mother, prior to 3:30 AM. When they entered the hospital, § 87(2)(b) brushed up against an officer. The officer accused § 87(2)(b) of pushing him. The officer called backup and many uniformed officers responded to the hospital. The officers jumped on § 87(2)(b) and brought him to the ground, assaulting him. § 87(2)(b) and § 87(2)(b) told the officers to leave § 87(2)(b) alone. At that point, officers jumped on § 87(2)(b) and § 87(2)(b) bringing them to the ground as well. At least ten officers were on top of each of them. One officer took § 87(2)(b)'s head and slammed it on the floor several times. § 87(2)(b) heard § 87(2)(b) cry out, "My arm, my arm." § 87(2)(b) tried to look up but the officer threatened to mace him, which he then did. § 87(2)(b) put his head down so the spray did not get into his eyes. At no point did he resist arrest. § 87(2)(b) did not witness either § 87(2)(b) or § 87(2)(b) resist arrest or use force against any officer. § 87(2)(b) indicated that none of them even had a chance to because so many officers were assaulting them. § 87(2)(b) also indicated that the officer who brushed against § 87(2)(b) also pushed § 87(2)(b) out of the way. § 87(2)(b) and § 87(2)(b) were all arrested. § 87(2)(b) stated that § 87(2)(b) had bruises on his body from the assault and did not see him until a few days after the arrests.

§ 87(2)(b)

§ 87(2)(b) provided a phone statement to the CCRB on October 26, 2007 (Enc. 26). § 87(2)(b) is the son of § 87(2)(b) and brother of § 87(2)(b) and § 87(2)(b) missed a scheduled interview at the CCRB on October 30, 2007. The CCRB made additional attempts to contact § 87(2)(b) but he proved to be uncooperative.

On September 2, 2007, at 3:30 AM, § 87(2)(b) stated that he, his mother § 87(2)(b) and his brother § 87(2)(b) went to § 87(2)(b) to visit § 87(2)(b) who is like family to them. When they approached the hospital, about 20 feet away, § 87(2)(b) encountered PO 1, described as a Hispanic male, with brownish skin, short, and with a normal build, identified through investigation as PO Fermin. When PO Fermin and § 87(2)(b) were approximately 5 feet away from each other, PO Fermin alleged that he had pushed him. PO Fermin immediately went on his radio and called for additional officers. The officers came right away and many of them jumped on top of § 87(2)(b) kicking and punching him. § 87(2)(b) was already handcuffed, face down on the floor as the officers beat him. § 87(2)(b) was even dragged inside the hospital near the emergency room. § 87(2)(b) indicated that PO Fermin also pushed § 87(2)(b) out of the way as the incident started. § 87(2)(b) did not resist arrest in any way during the incident. § 87(2)(b) could resist even if he wanted since the officers jumped on him in such a hurry, he was down on the ground very quickly. § 87(2)(b) never interfered with the police, nor did the number of friends of § 87(2)(b) who were outside of the hospital. It was awhile before § 87(2)(b) noticed that his other brother, § 87(2)(b) was lying on the floor inside the hospital, unconscious. § 87(2)(b) was lying on the floor until an officer in a white shirt came and got attention for him. The incident lasted for approximately ten to fifteen minutes.

§ 87(2)(b)

§ 87(2)(b) provided a phone statement to the CCRB on February 25, 2008 (Enc. 27). § 87(2)(b) is a friend of § 87(2)(b) and was identified by § 87(2)(b) § 87(2)(b) declined to provide an official statement to the CCRB.

On September 2, 2007, at approximately 3:30 AM, § 87(2)(b) stated that he was present at § 87(2)(b) where a friend of his was taken after being shot. There were approximately twenty civilians, including § 87(2)(b) inside the hospital doors. Also present were § 87(2)(b) and § 87(2)(b) PO Fermin, who § 87(2)(b) described as a Hispanic male, identified through investigation as PO Fermin, pushed § 87(2)(b) hard enough that she almost fell. § 87(2)(b) then asked PO Fermin why he pushed his mother. At that point, 40 to 50 police officers, mostly in uniform, started to beat up individuals in the vicinity, including § 87(2)(b) and § 87(2)(b) § 87(2)(b) was not involved in any physical altercation with the officers. § 87(2)(b) indicated that § 87(2)(b) and § 87(2)(b) never resisted arrest, and all three males were punched and kicked all over their bodies. § 87(2)(b) even had his hand bent backwards at one point. Pepper spray was also used against the individuals. In fact so much was used, that it was starting to bother § 87(2)(b) who was not sprayed. § 87(2)(b) indicated that approximately five individuals were arrested. The incident lasted for about thirty minutes.

Witnesses Not Interviewed

The other witnesses provided by § 87(2)(b) § 87(2)(b), and § 87(2)(b) could not be reached via phone because the numbers listed were no longer in service. The witnesses that were contacted did not want to give an official statement to the CCRB. Also, the witnesses did not respond to any mail sent by the CCRB. There was an attempt to interview hospital staff, but the director of hospital security indicated that the CCRB needed to provide specific names of employees in order to interview them, as opposed to have the hospital see who was on duty on the incident date. The CCRB was unable to identify any hospital employees.

Identification of Officers Interviewed

PO Fermin was identified by name during the incident by § 87(2)(b) and § 87(2)(b) PO Quinn was identified through roll call as PO Fermin's partner. All other officers were identified through the SPRINT report and roll call.

Officer Statements

PO Richard Fermin

PO Richard Fermin, a § 87(2)(b)-old, 5'8" tall, 190 pound, Hispanic male officer, was interviewed at the CCRB on March 21, 2008 (Enc. 43-44). PO Fermin has since been promoted to sergeant but will be referred to as PO Fermin throughout the report for clarification.

PO Fermin worked from 11:15 PM on September 1, 2007 to 7:50 AM on September 2, 2007. He was assigned to sector patrol and worked with PO Quinn. Both officers were in uniform and were assigned to a marked patrol car. PO Fermin faxed over a copy of his memo book entries for the date of incident. PO Fermin's memo book indicated that at 3:22 AM there was an arrest made by the conditions team of the 46th Precinct. PO Fermin and PO Quinn responded to § 87(2)(b) in regards to that arrest. At 3:35 AM a 10-85 (additional unit needed) was requested at § 87(2)(b). At 3:47AM there were three arrests made at the hospital and at 4:40AM, PO Fermin was awaiting medical attention at the hospital (Enc. 31-34).

The **complaint report** (Enc. 35-36) and **arrest report** (Enc. 37-38) for § 87(2)(b) indicated that he struck PO Fermin in the lobby of § 87(2)(b) with his left elbow, causing pain. § 87(2)(b) also said "fuck you" to PO Fermin and resisted arrest by flailing his arms and legs.

The **complaint reports** (Enc. 35-36) and **arrest reports** (Enc. 39-42) for § 87(2)(b) and § 87(2)(b) stated that they interfered with PO Fermin making an arrest by grabbing, pushing, and striking. § 87(2)(b) and § 87(2)(b) also resisted arrest by flailing their arms and legs.

On September 2, 2007, at approximately 3:30 AM, PO Fermin and PO Quinn were at § 87(2)(b) regarding a previous job that they had handled. PO Fermin went outside the hospital, down a slight ramp to make a notification to his supervisor. As he was on the radio, an individual, identified as § 87(2)(b) stared at PO Fermin as he walked by and elbowed him in his shoulder, knocking him back a few steps. § 87(2)(b) then said to PO Fermin, "Fuck you." PO Fermin told § 87(2)(b) "Stop, police." PO Fermin was going to place § 87(2)(b) under arrest for assaulting an officer. § 87(2)(b) started walking quickly and made it into the hospital before PO Fermin could catch up with him. When inside the front entrance of the hospital, PO Fermin attempted to handcuff § 87(2)(b). There were approximately twenty individuals who were friends and family of § 87(2)(b). PO Quinn was also inside the hospital and a few additional officers were outside. As PO Fermin tried to handcuff § 87(2)(b) he resisted arrest by flailing and tucking his arms as well as kicking. PO Fermin and § 87(2)(b) both fell to the ground as he tried to handcuff him. A 10-85 was called by either PO Quinn or one of the additional officers as a few minutes later approximately 8 to 15 officers from the 46th and 48th Precincts arrived. There were also a few officers somewhere outside the hospital who assisted quickly. While PO Fermin attempted to handcuff § 87(2)(b) some of the other twenty individuals started to interfere with the arrest, grabbing and pulling him while on the floor. PO Quinn at this point helped PO Fermin handcuff § 87(2)(b) while the other officers dealt with the other individuals. PO Fermin indicated that an individual even took a swing at him but missed by a few inches. PO Fermin and PO Quinn were finally able to handcuff § 87(2)(b). No force was used against § 87(2)(b) besides trying to place his arms behind his back. A total of three individuals were arrested for § 87(2)(b). PO Fermin was concentrating on § 87(2)(b) so he did not see what went on behind him. He did not take part in handcuffing the other arrested individuals. When PO Fermin finished handcuffing § 87(2)(b) he noticed another handcuffed individual, § 87(2)(b) on the floor having trouble breathing. Medical attention was sought immediately for § 87(2)(b) who was placed on a stretcher. PO Fermin was not aware how long § 87(2)(b) stayed at the hospital before being transported to the stationhouse. PO Fermin was presented the arrest photos of § 87(2)(b) and § 87(2)(b). PO Fermin positively identified § 87(2)(b) as the individual who assaulted him. He identified § 87(2)(b) as the individual who required medical attention and § 87(2)(b) as the individual who tried to hit him.

PO Fermin did not use pepper spray against anyone nor did he threaten to use it against anyone. PO Fermin did not witness any other officer use pepper spray or threaten to use it. However, PO Fermin did smell pepper spray inside the hospital. PO Fermin did not witness any officer threaten to hit anyone with their guns. PO Fermin did notice an older woman amongst the crowd, identified as § 87(2)(b). PO Fermin did not interact with her at any point. He did not push her and he did not witness another officer push her. PO Fermin received some injuries to

his ribs and knees. He stayed at the hospital for a while to seek medical attention. After PO Fermin was tended to, he returned to the stationhouse to finish up some paperwork for the arrests. While at the precinct, PO Fermin did not see § 87(2)(b) and did not witness any officers punch or kick him. PO Fermin also did not see § 87(2)(b) or interact with him at the precinct. PO Fermin did not know whether § 87(2)(b) requested medical attention from an officer.

PO Brendan Quinn

PO Brendan Quinn, a § 87(2)(b)-old, 6'1" tall, 265 pound, white male officer, was interviewed at the CCRB on June 19, 2008 (Enc. 53-54). PO Quinn has since been promoted to sergeant but will be referred to as PO Quinn throughout the report for clarification.

PO Quinn worked from 11:15 PM on September 1, 2007, to 7:50 AM on September 2, 2007. He was assigned to patrol and was working with PO Fermin. Both officers were in uniform and assigned to a marked patrol vehicle. PO Quinn's memo book indicated that at 3:22 AM, there was one arrest by the 46th Conditions auto and he was en route to § 87(2)(b). At 3:35 AM, there was a 10-85 at § 87(2)(b) Emergency Room. At 3:47 AM, PO Fermin had three individuals under arrest. At 5:35 AM, PO Quinn processed the arrests while PO Fermin went to the hospital for line of duty injury. At 8:35 AM, the arrest processing was completed and at 9:10 AM, PO Quinn filled out a line of duty witness report (Enc. 50-52).

On September 2, 2007, the 46th Precinct conditions team had made an arrest. PO Quinn and PO Fermin went to § 87(2)(b) in relation to that arrest at approximately 3:30 AM. PO Quinn was with the conditions team inside the hospital at the trauma area to make sure the arrests were done properly. At some point, PO Quinn heard PO Fermin yelling. PO Quinn did not have a line of sight of his partner from where he was and did not recall what PO Fermin was yelling. PO Quinn estimated that he was fifty feet away. PO Quinn went to see what was going on and saw PO Fermin struggling to handcuff an individual, who was resisting arrest. The investigation determined this person to be § 87(2)(b). They were right next to the doorway to the ambulance entrance of the hospital. § 87(2)(b) was pulling his arms away preventing PO Fermin from placing both handcuffs on his wrists. PO Quinn assisted PO Fermin and together handcuffed § 87(2)(b). Neither officer punched or kicked § 87(2)(b) while handcuffing him. PO Quinn did not see when the other two individuals got handcuffed. There were multiple officers present, more than ten. There were also many civilians present at the entrance as well. PO Quinn did not recall an older female being present. PO Quinn did not recall any pepper spray being used on anyone. PO Quinn did not recall if the conditions team had come to the area as he was focused on his partner. There was a 10-85 called by one officer, but PO Quinn did not know who it was. PO Quinn was presented with the arrest photos of § 87(2)(b) and § 87(2)(b). PO Quinn did not recognize any individuals. PO Fermin did tell PO Quinn at some point that one of the individuals pushed him, which started the incident. PO Quinn indicated that his partner suffered injuries while he was struggling to handcuff § 87(2)(b) but did not know the specific injury. PO Quinn did not recall any of the arrestees staying at the hospital for treatment. PO Quinn did not recall if any supervisors were on the scene when the incident occurred.

Sgt. Juan Ortiz

Sgt. Juan Ortiz, a § 87(2)(b)-old, 5'11" tall, 225 pound, Hispanic male, was interviewed at the CCRB on October 23, 2008 (Enc. 75-76).

Sgt. Ortiz worked from 8:00 PM on September 1, 2007, to 4:57 AM on September 2, 2007. He was assigned as the conditions supervisor and was working with PO Gomez and PO Colon. They were in uniform and assigned to an unmarked van. Sgt. Ortiz had no memo book entries regarding the incident.

On September 2, 2007, there was a shooting in the vicinity of East 183rd Street. A male who was shot was removed to § 87(2)(b). In an unrelated incident, another male was stabbed in his chest. Lt. Williams asked Sgt. Ortiz to go to the hospital to check on both victims. Upon arriving at the hospital at 3:40 AM, Sgt. Ortiz exited the vehicle last, while PO Gomez and PO Colon made their way to the emergency room entrance. As he was exiting the vehicle, Sgt. Ortiz heard commotion and then made his way towards the entrance. The entrance is a double door; maybe 3 people can walk through side by side. Sgt. Ortiz recalled that PO Fermin was there with his partner, who he could not recall. Sgt. Ortiz then saw an individual punching PO Gomez while another individual had PO Gomez in a bear hug from behind. After reviewing arrest photographs, Sgt. Ortiz identified § 87(2)(b) as the male who was punching PO Gomez. He also recognized § 87(2)(b) from the incident but failed to recognize § 87(2)(b).

§ 87(2)(b) Sgt. Ortiz went to assist PO Gomez and tried to apprehend the male who was punching him by placing his arms behind his back. While doing this, someone else started to punch and kick Sgt. Ortiz. Sgt. Ortiz finally was able to handcuff § 87(2)(b) and then immediately called for additional units since they were outnumbered, since there were about 10-12 people against only five officers and the officers were surrounded. When he first arrived at the lobby entrance, all individuals were inside the hospital. Approximately 7 individuals physically resisted the officers. Sgt. Ortiz did not recall seeing an older female in the crowd. After he made the call for a 10-85, Sgt. Ortiz went to handcuff a second individual, who the investigation could not determine. A total of three males were arrested at the hospital. Sgt. Ortiz did not recall punching or kicking the individuals he placed in handcuffs. Sgt. Ortiz did not witness any officer punch, kick, or push any individuals at the location. Sgt. Ortiz did not witness any officer use his pepper spray, although PO Gomez later told him that he used it at some point. Sgt. Ortiz ordered members of the crowd to get back as the additional units started to arrive from the 46th and 48th Precincts. As the individuals heard the sirens, the crowd began to disperse. Things started to settle down as the three individuals were handcuffed. Sgt. Ortiz received some “bumps and bruises” but did not go LOD. Sgt. Ortiz did not see any injuries on PO Fermin at the time. Once things were clam, PO Fermin told Sgt. Ortiz that hospital personnel told the crowd to disperse since they were trying to force their way in to the hospital see the shooting victim, but did not comply. One of the individuals, identified as § 87(2)(b) placed their hands on PO Fermin, who then tried to apprehend him. Sgt. Ortiz indicated that there were hospital employees where the incident took place but stated that they fled. Sgt. Ortiz believed that § 87(2)(b) complained of some pain and was kept at the hospital to be looked at. Sgt. Ortiz had no more interaction with the arrested individuals at the precinct on that day or any later day. No arrested individuals lost consciousness at any point. Since this incident, § 87(2)(b) installed a second set of doors since to provide better safety.

PO Cesar Gomez

PO Cesar Gomez, a § 87(2)(b)-old, 5'9" tall, 190 pound, Hispanic male officer, was interviewed at the CCRB on July 17, 2008 (Enc. 62-63).

PO Gomez worked from 8:00 PM on September 1, 2007, to 4:35 AM on September 2, 2007. He was assigned to the conditions unit and was working with PO Colon and Sgt. Ortiz. PO Gomez was in uniform and was assigned to a marked van. PO Gomez's memo book indicated that at 3:00 AM, he was en route to § 87(2)(b). At 3:15 AM, there was a 10-85 at § 87(2)(b) (Enc. 61).

On September 2, 2007, PO Gomez, Sgt. Ortiz, and PO Colon went to § 87(2)(b) at 3:15 AM to see the status of a recent shooting victim from earlier that morning. As the officers stopped the van outside of the hospital, PO Gomez was the first to exit. He witnessed another officer, PO Fermin, get pushed in his back with two hands by a male individual, causing him to almost fall onto the ground. This occurred just outside the entrance to the ER and right by the front lobby entrance. PO Fermin followed the individual inside and attempted to arrest him. There were approximately 15-20 individuals in the immediate vicinity. PO Gomez immediately went to the aid of PO Fermin, as many of the individuals attempted to grab and hold him. PO Gomez entered the scuffle, and became entangled with one of the individuals, who attempted to punch him. The investigation determined this individual to be § 87(2)(b). PO Gomez struggled with this individual for a few minutes. PO Gomez never punched or kicked this individual during the struggle. As this individual continued to struggle and almost strike PO Gomez, he used his pepper spray to the face. The individual was on his way to the floor, when the pepper spray was used. Another unknown officer came from behind and handed PO Gomez handcuffs to place on the individual. Sometime during the incident, Sgt. Ortiz radioed for additional units at the hospital. Before any additional units arrived, there were approximately five officers inside of the hospital trying to contain the crowd. The incident lasted for approximately ten minutes, but PO Gomez was not sure. Once things settled down, a few individuals were arrested by PO Fermin. PO Gomez was mostly focused on the individual he was dealing with, but he did not witness any other officer punch or kick anyone. PO Gomez did not use pepper spray against any other person nor did he see any other officer use pepper spray. When he used his pepper spray, PO Gomez was not paying attention if anyone was next to him. Once the incident was under control, PO Gomez and PO Colon went back outside and into the van, waiting for Sgt. Ortiz for approximately 10 minutes. PO Gomez did not transport any prisoners nor did he have any further contact with them. PO Gomez never witnessed anyone get pushed against the wall and fall down. PO Gomez did not recall seeing any injuries on any of the individuals. However, he did recall vaguely that after he went outside, he heard something to the effect that one of the individuals needed medical attention because of a prior health condition.

PO Orlando Colon

PO Orlando Colon, a § 87(2)(b)-old, 5'10" tall, 192 pound, Hispanic male, was interviewed at the CCRB on July 31, 2008 (Enc. 67-68).

PO Colon worked from 8:00 PM on September 1, 2007, to 4:35 AM on September 2, 2007. He was assigned to the conditions unit and was working with Sgt. Ortiz and PO Gomez. The officers were in uniform and assigned to a black unmarked van, which PO Colon was operating. PO Colon's memo book indicated that at 3:15 AM, the officers arrived at § 87(2)(b) and at 3:30 AM, three arrests were made at the hospital (Enc. 64-66).

On September 2, 2007, at approximately 3:15 AM, PO Colon, Sgt. Ortiz, and PO Gomez arrived at § 87(2)(b) because Sgt. Ortiz needed to verify something inside the hospital. PO Colon could not recall what the matter was about. Once they pulled into the hospital parking lot, Sgt. Ortiz and PO Gomez exited the van. Then, as he went to park the van, PO Colon saw Sgt. Ortiz and PO Gomez run into the Emergency Room entrance to the hospital, where an altercation was taking place. PO Colon immediately parked the van and ran into the hospital. There were at least 8-10 civilians inside the hospital that were around the officers who were involved in the altercation. PO Colon served as crowd control and attempted to keep them back. PO Colon stated that he pushed one person from the crowd to prevent him from entering the altercation. PO Colon had his back turned to the officers and did not see any individuals get handcuffed nor did he witness any of the struggling between the officers and the civilians. PO Colon did not witness any officer use pepper spray, nor did he witness any officer punch or kick anyone. PO Colon was presented with the arrest photos of § 87(2)(b) and § 87(2)(b). He did not recognize any of them. PO Colon did not recall seeing an older Hispanic female in the crowd. PO Colon did not recall if any of the arrested individuals needed immediate medical attention. The incident, according to PO Colon, was short lived. Once the incident ended, he, Sgt. Ortiz, and PO Gomez went back into the van and to the 46th Precinct. They did not transport any prisoners and did not have any interaction with the prisoners at the stationhouse.

PO John O'Brien

PO John O'Brien, a § 87(2)(b)-old, 5'10" tall, 220 pound, white male officer, was interviewed at the CCRB on June 19, 2008 (Enc. 55-56).

PO O'Brien worked from 11:15 PM on September 1, 2007, to 7:50 AM on September 2, 2007. He was assigned to sector M and was working with PO Galindo. Both officers were in uniform and assigned to a marked patrol vehicle. PO O'Brien did not have his memo book with him but was asked to fax the correct date to the CCRB.

On September 2, 2007, at approximately 3:40 AM, PO O'Brien and PO Galindo received a radio call for a 10-85 at § 87(2)(b). It took approximately five minutes for them to get to the hospital. When they arrived, PO O'Brien noticed a large crowd dispersing out of the entranceway of the hospital. PO O'Brien also noticed three to four handcuffed males being taken into a police van. Neither officer ever went into the hospital. The crowd consisted of more than ten officers and several civilians. PO O'Brien did not witness any officer punch or kick any individuals. PO O'Brien did not witness any officer use pepper spray or push anyone. PO O'Brien was not aware of any of the arrested individuals requesting medical attention. PO O'Brien did not see any of the individuals get handcuffed. PO O'Brien did not recall seeing an older female amongst the civilians. After the officers were at the location outside of the hospital for about eight minutes, a sergeant from their command told PO O'Brien and PO Galindo to go back on patrol. They did not have any physical contact with anyone and did not aid in any handcuffing.

PO Lawrence Dunlay

PO Lawrence Dunlay, a § 87(2)(b)-old, 6'1" tall, 215 pound, white male officer, was interviewed at the CCRB on July 16, 2008 (Enc. 59-60).

PO Dunlay worked from 8:00 PM on September 1, 2007, to 4:35 AM on September 2, 2007. He was assigned to the conditions team and worked with Sgt. Ortiz and PO Jimenez. PO Dunlay was in uniform and assigned to an unmarked vehicle, RMP § 87(2)(b). PO Dunlay did not have any memo book entries regarding this incident (Enc. 57-58).

PO Dunlay stated that he never went to § 87(2)(b) on the incident date. He was at the crime scene of a male shooting located at § 87(2)(b). PO Dunlay indicated that he did work with PO Gomez and PO Colon that evening, but they were separated. He explained that they were all assigned to SNEU, but were in

different teams. PO Dunlay did not know for sure where Sgt. Ortiz and PO Jimenez went after going to the crime scene. He was unsure if they went to the hospital. PO Dunlay was presented with the arrest photographs of § 87(2)(b) and § 87(2)(b). PO Dunlay did not recognize any of the individuals. PO Dunlay did not witness any allegations inside of § 87(2)(b) since he was never there.

PO Frankly Galindo, PO Daniel Ryan, and PO Matthew Mateer

PO Frankly Galindo, a § 87(2)(b)-old, 5'11" tall, 220 pound, Hispanic male officer, was interviewed at the CCRB on June 5, 2008. PO Daniel Ryan, a § 87(2)(b)-old, 6'0" tall, 275 pound, white male, was interviewed at the CCRB on August 26, 2008. PO Matthew Mateer, a § 87(2)(b)-old, 5'9" tall, 225 pound, white male, was interviewed at the CCRB on November 17, 2008 (Enc. 48-49; 73-74; 80-81).

PO Galindo worked from 11:15 PM on September 1, 2007, to 7:50 AM on September 2, 2007. He was assigned to patrol sectors MN and was working with PO O'Brien. Both officers were in uniform and assigned to a marked RMP 2701. PO Galindo's memo book indicated that at 3:40 AM, they arrived at § 87(2)(b) (Enc. 45-47). PO Ryan and PO Mateer worked from 11:15 PM on September 1, 2007, to 7:50 AM on September 2, 2007. They were assigned to sector patrol A. Both officers were dressed in uniform and were assigned to a marked police vehicle. Both officers' memo books indicated that at 3:40 AM, there was a request for additional units to respond at § 87(2)(b) (Enc. 69-72; 77-79).

PO Galindo, PO Ryan, and PO Mateer did not recall this incident. All three officers were presented with the arrest photos of § 87(2)(b) and § 87(2)(b). None of the officers recognized any of the individuals. The officers were informed that there was a melee inside the front lobby entrance of § 87(2)(b). The officers did not witness PO Fermin use any force against anyone or use his pepper spray against anyone. The officers did not witness any officer punch or kick any individuals inside the hospital. No officer witnessed any other officer threaten to use force against anyone inside the hospital.

Medical Documentation

The medical records for § 87(2)(b) from § 87(2)(b) on § 87(2)(b) indicated that he was arrested and allegedly assaulted by officers and received rib and back pain. § 87(2)(b) was diagnosed with a back strain as well as a contusion on his ribs (Enc. 82-88). There was no medical documentation for any other individuals involved in the incident.

Police Documentation

The **SPRINT report** (Enc. 89-91) noted that a call for additional units was made at § 87(2)(b) at approximately 3:38 AM. The conditions unit and sector M from the 46th Precinct, as well as sector A from the 48th Precinct, responded to the incident.

The **video footage from** § 87(2)(b) (Enc. 92) showed that at 4:37 AM according to the security camera time, a scuffle broke out near an entranceway between several uniformed officers and individuals. The footage was very grainy and inconclusive. One can see individuals go to the ground but it is unclear what force, if any, was used against them. No kicks or punches can be seen on the video. Officer identity is not helped by the footage, as not one officer who was interviewed for the case can be identified in the video. At the end of the scuffle, there seemed to be two people involved lying on the floor for a few minutes with officers standing over them.

The **command log** (Enc. 93) for the 46th Precinct noted that the arrests for § 87(2)(b) and § 87(2)(b) were logged at the same time, 4:07 AM. § 87(2)(b) however, was taken to Bronx Central Booking at 11:00 PM, whereas § 87(2)(b) and § 87(2)(b) were transported there at 11:07 AM.

The **prisoner holding pen roster** (Enc. 94-95) noted that § 87(2)(b) was transported to the hospital and returned to the 46th Precinct at 2:00 PM.

The **46th Precinct roll call** (Enc. 96-99) listed Sgt. Ortiz, PO Dunlay, PO Colon, and PO Gomez assigned to Conditions, PO Fermin and PO Quinn assigned to patrol sectors AB, and PO Galindo and PO O'Brien assigned to patrol sectors MN. The **48th Precinct roll call** (Enc. 100-102) listed PO Ryan and PO Mateer assigned to patrol sector A.

The **arrest photos** (Enc. 28; 30) of § 87(2)(b) and § 87(2)(b) showed no visible injuries. § 87(2)(b)'s arrest photo (Enc. 29) showed a slight red mark under his right eye.

Civilian CCRB History

§ 87(2)(b) and § 87(2)(b) have not filed any previous complaints with the CCRB (Enc. 5A-5C).

Officer CCRB History

PO Fermin does not have any substantiated allegations against him during his ten years with the NYPD (Enc. 2). PO Quinn has no substantiated allegations against him during his six years with the NYPD (Enc. 3). PO Gomez does not have any substantiated allegations against him in his two years with the NYPD (Enc. 4).

Criminal Convictions History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Criminal Case

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) alleged that after he entered the hospital, PO 1, who was described as a short, stocky, Hispanic male, pushed him in the chest and then forcefully threw his mother, § 87(2)(b) aside. § 87(2)(b) then alleged that PO 2, a tall, slim, white male, with blonde hair, punched him in his face with a closed fist. § 87(2)(b) also alleged that several officers punched and kicked him in his neck, back, and face. § 87(2)(b) alleged that an unknown officer used pepper spray against him. § 87(2)(b) alleged that several officers punched him in his face, back, and chest, and he was also thrown to the ground where he was kicked in the head. § 87(2)(b) alleged that a tall, light skinned male officer threatened to hit him with his gun. § 87(2)(b) also alleged that after he arrived at the 46th Precinct stationhouse, at least six white and Hispanic males in uniform punched and kicked him in his face, back, legs, and chest numerous times. PO Fermin, a 5'8" tall, 190 pound, Hispanic male, fits the description of PO 1, a shorter, stocky, Hispanic male. From the officers identified, PO Quinn is the only one who fits the description of PO 2, a tall white male, with blonde hair. PO Quinn is 6'1" tall, has blonde hair, and is 265 pounds. He is also the only white officer identified who is significantly taller than PO Fermin, as described by § 87(2)(b). During his CCRB interview, PO Gomez admitted to using his pepper spray during the incident. Sgt. Ortiz indicated that based on the arrest photographs, the person who PO Gomez was struggling with was § 87(2)(b). PO Fermin admitted that he was the first officer to interact with § 87(2)(b) and the other officer there at the time was PO Quinn. Also, the investigation determined that only one officer used pepper spray and PO Gomez admitted to it. § 87(2)(g)

Undisputed Facts

It is undisputed that several officers and civilians were engaged in a scuffle inside § 87(2)(b). It is undisputed that PO Gomez used pepper spray during the incident.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(b) alleged that PO Fermin accused him of assault and then pushed him in the chest with two hands. § 87(2)(b) and § 87(2)(b) alleged that PO Fermin then forcefully pushed § 87(2)(b) aside. § 87(2)(b) and § 87(2)(b) indicated that § 87(2)(b) was pushed out of the way when the incident started. PO Fermin denied pushing § 87(2)(b) or § 87(2)(b) when entering the hospital. PO Fermin stated that he went to handcuff § 87(2)(b) because he assaulted him. It was then that numerous individuals started to interfere with PO Fermin, pulling and grabbing him to the floor. PO Quinn, Sgt. Ortiz, PO Colon, and PO Gomez, did not witness PO Fermin push either § 87(2)(b) or § 87(2)(b) at any point. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that after he was pushed, PO Quinn punched him in his face with a closed fist. § 87(2)(b) and § 87(2)(b) also alleged that several officers started to punch and kick them throughout their bodies and faces. § 87(2)(b) also alleged that the officers punched and kicked § 87(2)(b) while he was on the ground. § 87(2)(b) and § 87(2)(b) all indicated that § 87(2)(b) and § 87(2)(b) were assaulted by numerous officers. However, § 87(2)(b) and § 87(2)(b) did not witness any force used against § 87(2)(b). PO Quinn denied punching or kicking any individual during the incident. All other officers interviewed denied punching or kicking any individuals inside the hospital. § 87(2)(b)s and § 87(2)(b)s arrest photos did not show any visible injuries on their faces. In § 87(2)(b)s arrest photo, a slight mark can be seen just below his right eye. § 87(2)(b)s medical records from § 87(2)(b) indicated that he received a back strain and a contusion on his ribs. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that an unknown officer used pepper spray against him during the incident. § 87(2)(b) alleged that PO Fermin pepper-sprayed § 87(2)(b) and § 87(2)(b) who also stated that he was pepper-sprayed. PO Gomez admitted during his CCRB interview that he used pepper spray against the individual he was struggling with. Sgt. Ortiz identified from the arrest photographs that § 87(2)(b) was the individual that PO Gomez was struggling with. PO Fermin denied using his pepper spray at any point during the incident. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) alleged that while he was on the floor, PO Quinn threatened to hit him with his gun. § 87(2)(b) also witnessed § 87(2)(b) threatened to be hit with a gun, but by two officers. PO Quinn and all other officers denied making any threats to hit § 87(2)(b) with their gun. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) indicated that after he stayed at the hospital, he was taken to the 46th Precinct. While there, he alleged that several white and Hispanic male officers in uniform, at least six of them, punched and kicked him repeatedly. § 87(2)(b) was not able to say what time he arrived at the precinct nor could he describe any officers more specifically than just white and Hispanic males. According to the command log and prisoner holding pen roster, § 87(2)(b) was taken to the precinct at 4:07 AM and was taken to the hospital at 7:00 AM to be returned at 2:00 PM. § 87(2)(b)s arrest photo, which would have been taken after he returned to the stationhouse, showed no visible injuries except for a possible small mark under his right eye. § 87(2)(b) alleged twice that he was repeatedly punched and kicked throughout his body, including his face. § 87(2)(g)

§ 87(2)(b)

Allegations Not Pleaded

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

§ 87(2)(b) and § 87(2)(b) alleged that PO Fermin first pushed § 87(2)(b) in his chest, which started the incident. § 87(2)(b) alleged that PO Quinn then punched him in his face. All complainants and victims alleged that multiple officers punched and kicked § 87(2)(b) and § 87(2)(b). All officers denied ever punching or kicking anyone during the incident and PO Fermin alleged § 87(2)(b) elbowed him, which started the incident. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) all alleged that PO Fermin pushed § 87(2)(b) forcefully aside. § 87(2)(b) alleged that PO Quinn threatened to hit him with his gun. PO Fermin and PO Quinn denied their respective allegations. None of the other officers witnessed PO Fermin push an older female or PO Quinn threaten to hit anyone with his gun. § 87(2)(g)

§ 87(2)(b) alleged that an unknown officer used pepper spray against him during the incident. PO Gomez admitted to using pepper spray during the incident because one of the individuals continually attempted to punch him as he struggled to handcuff him. Sgt. Ortiz stated that § 87(2)(b) was the individual that PO Gomez was entangled with during the incident. According to Patrol Guide procedure 212-95 (Enc. 1), pepper spray can be used as a possible alternative to substantial force, to effect an arrest of a resisting suspect, for self-defense, or for the defense of another individual. § 87(2)(g)

§ 87(2)(b) alleged that following the incident, after he stayed for some time at § 87(2)(b) for his heart condition, officers brought him to the 46th Precinct where several white and Hispanic male officers punched and kicked him about his body and face. § 87(2)(b) could not describe exactly how many officers were involved or what they specifically looked like. § 87(2)(g)

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: